

SENATE No. 2240

The Commonwealth of Massachusetts

PRESENTED BY:

Cynthia Stone Creem

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote low-income access to solar.

PETITION OF:

NAME:

Cynthia Stone Creem

DISTRICT/ADDRESS:

Norfolk and Middlesex

SENATE No. 2240

By Ms. Creem, a petition (accompanied by bill, Senate, No. 2240) of Cynthia Stone Creem
relative to promote low-income access to solar. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2094 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote low-income access to solar.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority
of the same, as follows:*

1 SECTION 1. Chapter 164 of the General Laws, as appearing in the 2020 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 149. (a) The department of energy resources shall ensure equity, accessibility,
4 and promote participation by renters and low-income retail electric customers in the solar
5 incentive program established in section 11 of chapter 75 of the acts of 2016, and in any
6 successor solar incentive program, by implementing a low-income customer verification process
7 in which low income customers shall be persons whose income is at or below 80 percent of the
8 area median income or 200 percent of the federal poverty level or is a small business, who are,
9 for the purposes of this section defined as business entities, including their affiliates that are (i)
10 independently owned and operated; and (ii) are defined as a “small business” under applicable

federal law, as established in the United States Code and promulgated from time to time by the United States Small Business Administration.

(b) A low-income multi-unit building that meets the definition under M.G.L. c. 40B, § 20 or otherwise receives tax credits under the U.S. Department of Housing and Urban Development Low-Income Housing Tax Credit program shall qualify as one low-income customer.

(c) In the implementation of the program, the department shall:

(i) Require income data verification to determine eligibility for low-income customers. Proof of eligibility required for low-income customers shall include one or more than one of the following: proof of participation in a low income discount program including Medicaid; Supplemental Security Income; Temporary Assistance for Needy Families; Women, Infants, and Children Nutrition Program; Low Income Home Energy Assistance Program; Supplemental Nutrition Assistance Program; Head Start; National School Lunch Program; Emergency Aid to the Elderly, Disabled, and Children; School Breakfast Program; public housing; Transitional Aide to Families with Dependent Children; Veterans' Service Benefits established in Chapter 115; Veterans Dependency and Indemnity Compensation Surviving Parent or Spouse; Veterans Non-Service Disability Pension; Low Income Home Energy Assistance Program or other fuel assistance; or proof that the residential low-income customer lives in or is a business entity located in a Census block group where the median household income is at or below 200 percent of the U.S. Federal Poverty Guidelines or 80 percent of the area median gross income published by the United States Census Bureau, whichever is greater; by living in or owning a low-income multi-unit building, including those that are master-metered; or proof of income of the account holder including pay stubs or form W-2; or any verification method authorized by the U.S.

Department of the Treasury for the qualified low-income economic benefit project Investment Tax Credit adder under United States Public Law 117-169 Section 13103(2)(C);

(ii) prohibit credit checks as a means of establishing eligibility for residential customers to become a subscriber;

(iii) prohibit the use of early termination and exit fees for residential customers;

(iv) require distribution companies generating an alternative form of on-bill credits as approved by the department of public utilities from distributed solar generation facilities to accept and implement no less frequently than once per month any changes to the identities of designated recipients and amount of credits to be attributed to such recipients, as provided by the owner of the solar distributed generation facility; and

(v) exempt low-income multi-unit building owners from bill credit maximums and subscriber count minimums for the host project.

SECTION 2. The department of public utilities shall promulgate regulations to implement this act within 180 days of its effective date.